

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR SEPTEMBER 18, 2026 AT 8:30 A.M.**

6. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CTR

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Cross-Defendant Professional Security Consultants' Demurrer to CPT Creekside Town Center, LLC and Vestar Properties, Inc.'s First Amended Cross-Complaint (FAC-C)

Ruling on Request for Judicial Notice

Cross-defendant's request for judicial notice is granted, over objection, pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained with leave to amend.

The allegations in the first and second causes of action are deficiently pleaded, failing to allege sufficient facts to support the claims for breach of contract and negligence. (Cross-defendant's demurrer pp. 10:27-14:10; 14:13-15:26; Code of Civil Procedure section 472d.)

The second amended cross-complaint shall be filed and served September 28, 2026.

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